

complete template version of the Arbitration Agreement used at the time of Plaintiff's hiring, including the omitted header and introductory language, and confirmed the agreement had not changed during the relevant period. (Ibid.) Van Hooser also attests that Plaintiff's handwriting, date, and signature on the Arbitration Agreement are consistent with multiple other documents contained in Plaintiff's personnel file. (Ibid.) He explains the omission was likely due to the office scanner pulling in the document incorrectly, thereby cutting off a portion of the top of the page. (Supp. Van Hoose Decl., ¶ 3.)

Re the Rules of Court, rule 3.1330 requires only that the arbitration provisions be stated verbatim or attached and incorporated by reference. Here, the operative arbitration provision was attached to the moving papers.

Parties Not Sufficiently Identified?

Plaintiff next argues that the Arbitration Agreement is fatally ambiguous because it repeatedly references "the Company" without identifying the applicable entity or entities.

Under California law the basic requirements for an enforceable contract are (1) parties capable of contracting, (2) the consent of those parties, (3) a lawful object, and (4) adequate consideration. (Civ. Code, § 1550; see *J.B.B. Investment Partners Ltd. v. Fair* (2019) 37 Cal.App.5th 1, 9.) Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable. (*Bustamante v. Intuit, Inc.* (2006) 141 Cal. App. 4th 199, 209.) In determining whether there is mutual consent, the court will often consider extrinsic evidence and resolve a question of fact. (*Eagle Fire & Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448, 468.)

Here, the identity of the contracting parties is reasonably ascertainable from the surrounding circumstances and related employment documents, including Plaintiff's offer letter identifying the employer as "Sunshine Behavioral Health Group dba Chapters Capistrano," as well as Plaintiff's acknowledged employment relationship with

Defendants. (Van Hooser Decl., ¶¶ 7-8, Exhs. A-C.) Accordingly, the court may reasonably ascertain the parties' mutual intent to be bound by the Arbitration Agreement, and the failure to specifically identify "the Company" does not render the agreement fatally ambiguous.

Superseded Agreement?

Next, Plaintiff argues that the Arbitration Agreement was superseded by a subsequent written employment agreement dated 8/22/22 ("Employment Agreement").

The execution of a contract in writing, whether the law requires it to be written or not, supersedes all the negotiations or stipulations concerning its matter which preceded or accompanied the execution of the instrument. (Civ. Code, § 1625.)

Here, the Employment Agreement provides, in pertinent part:

16. Entire Agreement. Employee agrees that Employee does not rely, and has not relied, upon any representation or statement not set forth herein by the Company or any of its agents, representatives, or attorneys. This Agreement contains the entire and exclusive agreement of the Parties hereto on any of the subjects described herein, whether written or oral. ***This Agreement supersedes any prior agreements*** between Employee and the Company ***on any of the subjects described herein***, whether written or oral, and cannot be varied, contradicted, or supplanted by evidence of any prior or contemporaneous discussion, correspondence, or oral or written agreements, arrangements, or memoranda of any kind. This Agreement may not be amended or modified otherwise than by a written agreement executed by the Company and Employee or their respective successors and legal representatives.

(Van Hooser Decl., Exh. C [Employment Agreement, p. 6, emphasis supplied].)